

HOUSE No. 2198

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act reducing emergency department boarding.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/15/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>4/8/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 2198

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 2198) of Marjorie C. Decker relative to emergency department boarding. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act reducing emergency department boarding.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Section 12 of Chapter 123 of the General Laws is hereby amended by adding
2 after the first paragraph in subsection (a) the following paragraphs:-

3 No person shall be involuntarily held for more than 72 hours at a facility that has not
4 been authorized by the department to perform evaluations under section 12(b). Any person held
5 longer than 72 hours must be released.

6 Any psychiatric hold lasting for more than 48 hours at a facility that has not been
7 authorized by the department to perform evaluations under section 12(b) must be referred to the
8 Committee for Public Counsel Services for appointment of counsel.